



**U.S. Citizenship
and Immigration
Services**

**Non-Precedent Decision of the
Administrative Appeals Office**

In Re: 34833366

Date: JAN. 22, 2025

Appeal of Texas Service Center Decision

Form I-140, Immigrant Petition for Alien Workers (National Interest Waiver)

The Petitioner seeks employment-based second preference (EB-2) immigrant classification as a member of the professions holding an advanced degree, as well as a national interest waiver of the job offer requirement attached to this classification. *See* Immigration and Nationality Act (the Act) section 203(b)(2), 8 U.S.C. § 1153(b)(2).

The Director of the Texas Service Center denied the petition, concluding that the Petitioner qualified for EB-2 classification, but that she had not established that a waiver of the required job offer, and thus of the labor certification, would be in the national interest. On appeal, the Petitioner submits additional documentation and asserts that she is eligible for the benefit sought.

The Petitioner bears the burden of proof to demonstrate eligibility by a preponderance of the evidence. *Matter of Chawathe*, 25 I&N Dec. 369, 375-76 (AAO 2010). We review the questions in this matter de novo. *Matter of Christo's, Inc.*, 26 I&N Dec. 537, 537 n.2 (AAO 2015). Upon de novo review, we will dismiss the appeal.

I. LAW

To qualify for the underlying EB-2 visa classification, a petitioner must establish they are an advanced degree professional or an individual of exceptional ability in the sciences, arts, or business. Section 203(b)(2)(A) of the Act. If a petitioner establishes eligibility for the underlying EB-2 classification, they must then demonstrate that they merit a discretionary waiver of the job offer requirement “in the national interest.” Section 203(b)(2)(B)(i) of the Act. *Matter of Dhanasar*, 26 I&N Dec. 884, 889 (AAO 2016), provides the framework for adjudicating national interest waiver petitions. *Dhanasar* states that U.S. Citizenship and Immigration Services (USCIS) may, as matter of discretion,¹ grant a national interest waiver if the petitioner demonstrates that:

- The proposed endeavor has both substantial merit and national importance;
- The individual is well-positioned to advance their proposed endeavor; and
- On balance, waiving the job offer requirement would benefit the United States.

¹ *See Flores v. Garland*, 72 F.4th 85, 88 (5th Cir. 2023) (joining the Third, Ninth, Eleventh, and D.C. Circuit Courts of Appeals in concluding that USCIS’ decision to grant or deny a national interest waiver is discretionary in nature).

Id.

II. ANALYSIS

The Director found that the Petitioner qualifies as a member of the professions holding an advanced degree. The sole issue to be determined on appeal is whether the Petitioner has established that a waiver of the requirement of a job offer, and thus a labor certification, would be in the national interest. For the reasons discussed below, we conclude the Petitioner has not established eligibility for a national interest waiver under the analytical framework set forth in *Dhanasar*.

A. Substantial Merit and National Importance

The first prong, substantial merit and national importance, focuses on the specific endeavor that the individual proposes to undertake. *Matter of Dhanasar*, 26 I&N Dec. at 889. The endeavor's merit may be demonstrated in a range of areas such as business, entrepreneurialism, science, technology, culture, health, or education. *Id.* In determining whether the proposed endeavor has national importance, we consider its potential prospective impact. *Id.* With respect to this prong, the Petitioner stated that her proposed endeavor was to "continue research on the structure, function, and interaction of proteins as a foundation for developing novel therapeutic targets and innovative approaches for disease intervention" including Alzheimer's disease and other neurodegenerative diseases. The Director determined that the Petitioner had demonstrated both the substantial merit and national importance of her proposed endeavor. This determination will not be disturbed on appeal.

B. Well Positioned to Advance the Proposed Endeavor

The second prong shifts the focus from the proposed endeavor to the individual. *Dhanasar*, 26 I&N Dec. at 890. To determine whether they are well positioned to advance the proposed endeavor, we consider factors including, but not limited to: their education, skills, knowledge and record of success in related or similar efforts; a model or plan for future activities; any progress towards achieving the proposed endeavor; and the interest of potential customers, users, investors, or other relevant entities or individuals. *Id.* The record contains a personal statement, a curriculum vitae, educational credentials, recommendation letters, articles and abstracts, citatory evidence, and peer review activity. For the reasons discussed below, the record supports the Director's determination that the evidence is insufficient to demonstrate that the Petitioner is well positioned to advance her proposed research under *Dhanasar*'s second prong.

We acknowledge the Petitioner's education, including her master's degree in cellular and molecular sciences and her doctoral candidacy at the [REDACTED]. Although the Petitioner's advanced degree in a STEM field is an especially positive factor, it is not a sufficient basis to determine that he is well positioned to advance the proposed endeavor. See 6 USCIS Policy Manual F.5(D)(2), <https://www.uscis.gov/policymanual>. Rather, we look to a variety of factors and education is merely one among many that may contribute to such a determination.

In letters supporting the petition, several references discussed the Petitioner's research projects.² For example, a professor and the Petitioner's doctoral advisor at the [redacted] described two ongoing projects the Petitioner had undertaken at the lab and stated that the research "advances the understanding of the role proteins play in various neurodegenerative diseases and assists in identifying drug targets for therapeutics to address the biological processes that drive human diseases." The professor does not offer specific examples indicating that the Petitioner's work has affected the field or otherwise represents a record of success or progress rendering her well positioned to advance the proposed endeavor.

As another example, while a professor and university research chair at the [redacted] stated that the Petitioner's work on "interrogating the role of homocysteine in the development of cataracts" led to the discovery of "previously unknown mechanisms by which a key protein interacts with cellular processes within the lens," the letter does not further elaborate and sufficiently explain how the Petitioner's work has been utilized in the field or otherwise constitutes a record of success. The letters in the record do not suffice to establish how the Petitioner's research has influenced the field of endeavor, to demonstrate the significance of her work and show that her work constitutes a record of success.

As for the Petitioner's citatory record, she has not shown that a notable number of the citing authors placed unusual reliance on her work, resulting in a significant impact within the field. Citation frequency which is quantitative in nature does not reveal the reasons for citations, which involve a qualitative analysis. In other words, a high citation number might show that others in the field have noticed the Petitioner's work, but it does not confirm that her work has impacted or advanced the field of endeavor in such a way that renders her well positioned. Researchers throughout a given field may cite other published works without the cited work being notably influential or serving as a foundational basis for their own work. Even though others within the Petitioner's field may have relied on her research findings within their own work, this is not sufficient to demonstrate that she had made contributions of major significance within the field. The Petitioner has not established that the number of citations received by her published articles reflect a level of interest in her work from relevant parties sufficient to meet *Dhanasar*'s second prong. Further, while we listed Dr. Dhanasar's "publications and other published materials that cite his work" among the documents he presented, our determination that he was well positioned under the second prong was not based on his citation record. Rather, in our precedent decision, we found "[t]he petitioner's education, expertise, and experience in his field, the significance of his role in research projects, as well as the sustained interest of and funding from government entities such as NASA and AFRL, position him well to continue to advance his proposed endeavor of hypersonic technology research." *Dhanasar*, 26 I&N Dec. at 893.

The Petitioner also highlights her "multi-year pivotable and undeniable role in a project funded by the U.S. National Institutes of Health." However, as established on appeal, the Petitioner is not named grant recipient. In *Dhanasar*, the record established the petitioner "initiated" or was "the primary award contact on several funded grant proposals" and he was "the only listed researcher on many of the grants." *Id.* at 893, Fn.11. While the Petitioner may play an important role in the research and ultimate success of the project, we note that the project is directed by the Petitioner's doctoral advisor. The record does not show the Petitioner is mainly responsible for obtaining funding for the research project.

² While we discuss a sampling of these letters, we have reviewed and considered each one.

The record demonstrates the Petitioner has conducted and published research while pursuing her education, but she has not shown that this work renders her well positioned to advance her proposed research. While we recognize that research must add information to the pool of knowledge in some way in order to be accepted for publication, presentation, funding, or academic credit, not every individual who has performed original research will be found to be well positioned to advance their proposed endeavor. Rather, we examine the factors set forth in *Dhanasar* to determine whether, for instance, the individual's progress towards achieving the goals of the proposed research, record of success in similar efforts, or generation of interest among relevant parties supports such a finding. *Dhanasar*, 26 I&N Dec. at 890. The Petitioner, however, has not sufficiently demonstrated her work has served as an impetus for progress in the field or it has generated substantial positive discourse in academic community. Nor does the evidence otherwise show her work constitutes a record of success or progress in advancing her research. As the Petitioner has not demonstrated that she is well positioned to advance her proposed research endeavor, she has not established that she satisfies the second prong of the *Dhanasar* framework.

C. Whether on Balance a Waiver is Beneficial

As explained above, the third prong requires the petitioner to demonstrate that, on balance, it would be beneficial to the United States to waive the requirements of a job offer and thus of a labor certification. Because the Petitioner has not established eligibility under the second prong of the *Dhanasar* framework, we decline to reach and hereby reserve remaining arguments concerning eligibility under the third prong. *See INS v. Bagamasbad*, 429 U.S. 24, 25 (1976) (per curiam) (holding that agencies are not required to make “purely advisory findings” on issues that are unnecessary to the ultimate decision).

III. CONCLUSION

As the record is insufficient to demonstrate the Petitioner is well positioned to advance her proposed research endeavor, she has not established she satisfies the second prong of the *Dhanasar* framework. As such, analysis of her eligibility under the third prong outlined in *Dhanasar*, therefore, would serve no meaningful purpose. Accordingly, the Petitioner has not shown eligibility for a national interest waiver.

ORDER: The appeal is dismissed.